

LEGAL ARGUMENTS

ISSUE I: THE TRIAL COURT ABUSED ITS DISCRETION IN CUSTODY AND PARENTING TIME DETERMINATIONS

A. Standard of Review

A trial court's custody determination is reviewed under the great weight of the evidence standard for findings of fact, and for an abuse of discretion as to the custody decision itself. *Fletcher v Fletcher*, 447 Mich 871, 879; 526 NW2d 889 (1994). An abuse of discretion occurs when the trial court's decision falls outside the range of principled outcomes. *Maldonado v Ford Motor Co*, 476 Mich 372, 388 (2006). Compliance with court rules is reviewed de novo. *Haliw v Sterling Heights*, 471 Mich 700, 704 (2005).

B. The Vodvarka Threshold and Its Application

Before a trial court may modify a custody order, the moving party must demonstrate either proper cause or a change in circumstances. *Vodvarka v Grasmeyer*, 259 Mich App 499, 509; 675 NW2d 847 (2003). This threshold requirement exists to protect the stability of custody arrangements and to prevent the relitigation of settled custody matters absent a material change.

In this case, the trial court progressively restricted Father's parenting time through a series of orders -- including ex parte orders -- without requiring Mother to satisfy the *Vodvarka* threshold. The April 29, 2024 ex parte order, the July 1, 2024 ex parte custody order, and the

August 23, 2024 Final Judgment each represented a modification of Father's custodial rights, yet the record does not reflect that the *Vodvarka* proper cause/change of circumstances analysis was conducted before any of these modifications.

C. The Harvey Requirement: Specific Findings on Each Best-Interest Factor

The Michigan Supreme Court held in *Harvey v Harvey*, 470 Mich 186, 192 (2004), that "a trial court must consider and explicitly state its findings" with respect to each of the twelve best-interest factors enumerated in MCL 722.23. The failure to make such findings is reversible error. *Id.* at 193. *See also* MCR 2.517(A)(1)-(2) (requiring that findings of fact be stated on the record).

The August 23, 2024 Final Judgment granted Mother sole legal and sole physical custody of L.D.W. The record does not contain particularized findings on all twelve best-interest factors. This alone constitutes reversible error under *Harvey*.

D. The Fletcher Standard: Established Custodial Environment

Under *Fletcher v Fletcher*, 447 Mich at 883, the trial court must determine whether an established custodial environment ("ECE") exists and, if it does, require clear and convincing evidence before modifying it. An ECE exists when "over an appreciable time the child naturally looks to the custodian in that environment for guidance, discipline, the necessities of life, and parental comfort." *Id.* at 883.

Father had an established parental relationship with L.D.W. prior to the proceedings below. The trial court's progressive restriction and ultimate elimination of Father's parenting time altered the custodial environment without the clear and convincing evidence standard that

Fletcher requires.

ISSUE II: THE TRIAL COURT DENIED FATHER PARENTING TIME WITHOUT DUE PROCESS

A. Standard of Review

Whether a party has been afforded due process is a question of law reviewed de novo. *Bonner v Brighton*, 495 Mich 209, 221 (2014). The adequacy of procedures in custody proceedings is reviewed de novo. *Pierron v Pierron*, 486 Mich 81, 92; 782 NW2d 480 (2010).

B. The Fundamental Liberty Interest

The Supreme Court of the United States has repeatedly recognized that a parent's right to the care, custody, and companionship of his or her child is a fundamental liberty interest protected by the Fourteenth Amendment. *Troxel v Granville*, 530 US 57, 65; 120 S Ct 2054 (2000) ("The liberty interest . . . of parents in the care, custody, and control of their children -- is perhaps the oldest of the fundamental liberty interests recognized by this Court."). *See also Santosky v Kramer*, 455 US 745, 753; 102 S Ct 1388 (1982) ("The fundamental liberty interest of natural parents in the care, custody, and management of their child does not evaporate simply because they have not been model parents."); *Stanley v Illinois*, 405 US 645, 651 (1972).

The Michigan Supreme Court has likewise held that "a parent has a significant interest in the companionship, care, custody, and management of his or her children" which is protected by both the federal and state constitutions. *Pierron v Pierron*, 486 Mich 81, 92 (2010).

Because parental rights are a fundamental liberty interest, the deprivation of those rights triggers the most exacting due process protections. The state may not deprive a parent of the care and custody of his child except through proceedings that comport with the requirements of the Due Process Clause.

C. The *Mathews v Eldridge* Analysis

The *Mathews v Eldridge* three-factor balancing test, 424 US 319, 335 (1976), governs the process that is due when a protected liberty interest is at stake:

1. The private interest affected. Father's fundamental liberty interest in the care, custody, and companionship of his daughter is "far more precious than any property right." *Santosky*, 455 US at 758-59. The Supreme Court has recognized this interest as among the most significant in our constitutional order. The deprivation in this case -- over 500 consecutive days without any contact with L.D.W. -- is tantamount to a de facto termination of parental rights without any of the procedural protections that accompany formal termination proceedings.

2. The risk of erroneous deprivation through the procedures used. The risk of erroneous deprivation in this case is exceptionally high because:

- * The August 23, 2024 Final Judgment was entered without a full evidentiary hearing with sworn testimony subject to cross-examination.
- * The August 8, 2025 ex parte order was entered without any hearing at all -- Father was not present, was not represented, and had no opportunity to contest the allegations against him.
- * No particularized findings of fact were entered on the best-interest factors.

* The applicable burden of proof was not articulated.

* Father's six pending motions were dismissed without adjudication.

Summary proceedings that bypass these fundamental safeguards create an unacceptable risk that a parent will be erroneously deprived of his fundamental rights.

3. The government's interest. The state's interest in protecting children is legitimate and important. But that interest is served -- not undermined -- by ensuring that custody determinations are made through fair and accurate proceedings. As the Supreme Court recognized in *Santosky*, "the State's interest in the welfare of the child" is "not in any sense combative" with the parent's interest; rather, "the State registers no gain towards its declared goals when it separates children from the custody of fit parents." 455 US at 766-67.

D. The Eldred Standard: Parenting Time Cannot Be Denied Without Proper Procedure

The Michigan Court of Appeals held in *Eldred v Ziny*, 246 Mich App 142, 150 (2001), that parenting time "shall not be denied except as provided by court rule or statute." The Court recognized that a parent has a due process right to a hearing before being deprived of parenting time with his or her child. *Id.*

MCR 3.210(D) requires that custody disputes be resolved through evidentiary hearing. MCL 722.27a(7) requires that before parenting time may be denied, the trial court must determine "on the record by clear and convincing evidence that it would endanger the mental, physical, or emotional health of the child."

The trial court made no such finding. The August 23, 2024 Final Judgment restricts Father's parenting time without a finding, supported by clear and convincing evidence, that parenting

time with Father would endanger L.D.W. The August 8, 2025 ex parte order suspends all parenting time without any hearing at all. These failures violate both *Eldred* and the constitutional guarantee of due process.

ISSUE III: THE TRIAL COURT CONDUCTED UNLAWFUL EX PARTE PROCEEDINGS IN VIOLATION OF MCR 2.119 AND MCR 3.207

A. Standard of Review

A trial court's decision to enter an ex parte order is reviewed for abuse of discretion. *Crampton v Dep't of State*, 395 Mich 347, 351 (1975). Compliance with court rules is reviewed de novo.

B. The MCR 3.207(C)(2) Requirements

MCR 3.207(C)(2) establishes the exclusive conditions under which ex parte relief may be granted in domestic relations proceedings:

> A party may obtain an ex parte order in a domestic relations action . . . only on a showing, by verified statement of facts, that (a) immediate and irreparable injury, loss, or damage will result from the delay required to effect notice, or (b) the notice itself will precipitate adverse action before the order can be issued.

These requirements are mandatory, not discretionary. The word "only" in the rule text makes clear that ex parte relief is available solely when these conditions are met. The rule further requires, under MCR 3.207(C)(3), that "[a]n ex parte order must state the reasons for granting the order without notice and must set a hearing date to review the order."

C. The 44% Ex Parte Rate

The record reveals that 24 of 55 orders (44%) entered in the custody and PPO proceedings were entered on an ex parte basis -- all 24 by Judge McNeill, all restricting Father's rights, and none in Father's favor. (LCR, ROA -- complete analysis.)

This rate is extraordinary. Ex parte orders are, by definition, exceptional measures authorized only when the circumstances preclude the provision of notice. When nearly half of all orders in a case are entered ex parte, the proceedings cannot be characterized as adversarial. They become, in substance, inquisitorial proceedings in which one party presents its version of events and the court acts without hearing from the other side.

D. The August 8, 2025 Ex Parte Orders

The August 8, 2025 orders represent the most egregious violation. On that single day, five separate ex parte orders were entered -- all without notice to Father, all adverse to Father, and all suspending or restricting his parental rights. (LCR, ROA, 08/08/2025.)

The ex parte motion filed by Mother alleged drug use and mental health concerns based on phone calls. (LCR, Ex Parte Motion, 08/08/2025.) These allegations were unverified. No drug test results were submitted. No medical evaluation was provided. No evidence of imminent harm to the child was presented. The motion did not demonstrate that "immediate and irreparable injury, loss, or damage will result from the delay required to effect notice."

Father arrived at the scheduled parenting time exchange on August 8, 2025 expecting his regular time with L.D.W. He discovered -- only after the missed exchange, by contacting the

court -- that his parenting time had been suspended. This is not a case where notice was impracticable; it is a case where notice was not even attempted.

E. The Pattern of MCR 2.119 Violations

MCR 2.119(B) requires that "[a] written motion . . . and any brief in support of the motion must be served and filed at least 9 days before the hearing on the motion." The trial court's entry of ex parte orders without notice deprived Father of the opportunity to file a response brief and present counter-arguments -- the basic procedural safeguards that MCR 2.119 is designed to ensure.

ISSUE IV: THE PPO WAS WEAPONIZED TO CIRCUMVENT THE CHILD CUSTODY ACT

A. Standard of Review

Statutory interpretation is reviewed de novo. *Klooster v City of Charlevoix*, 488 Mich 289, 295-96 (2011). Whether a trial court's custody determination complied with statutory requirements is reviewed de novo. *Pierron*, 486 Mich at 92.

B. The Statutory Prohibition: MCL 600.2950(4)

MCL 600.2950(4) expressly provides:

> "A personal protection order shall not be made a condition of release of a minor child to a parent and **shall not in any manner affect the provisions of a custody or parenting time order** issued by the circuit court under the Child Custody Act of 1970"

This language is unambiguous. The Legislature determined that PPOs and custody proceedings operate in separate spheres. A PPO may restrict contact between parties, but it "shall not in any manner" affect custody or parenting time orders. The phrase "in any manner" is the broadest possible prohibition.

C. The Weaponization Chronology

Despite this clear statutory prohibition, the PPO entered in Case No. 2023-5907-PP was used as the primary mechanism for restricting Father's custody and parenting time:

1. **December 4, 2023:** PPO issued against Father -- before any custody proceeding existed. (LCR-PPO, Order, 12/04/2023.)
2. **January 7, 2024:** Father found in PPO violation -- his liberty restricted through a proceeding that MCL 600.2950(4) says cannot affect custody. (LCR-PPO, Order, 01/07/2024.)
3. **April 11, 2024:** PPO amended ex parte on the same day that custody complaint activity occurred -- the two proceedings were being treated as interchangeable. (LCR-PPO, Ex Parte Order, 04/11/2024; LCR, ROA, 04/11/2024.)
4. **April 29, 2024:** Ex parte custody order entered, citing the PPO proceeding as context. (LCR, Ex Parte Order, 04/29/2024.)

5. **June 15, 2024:** Father receives **45-day jail sentence** through PPO violation -- a punishment that directly affected his ability to exercise parenting time. (LCR-PPO, Order, 06/15/2024.)

6. **August 23, 2024:** Final Judgment grants sole custody to Mother, with the PPO as a background factor that had already restricted Father's rights for ten months. (LCR, Final Judgment, 08/23/2024.)

7. **August 8, 2025:** Ex parte order suspends all parenting time -- the culmination of the PPO-to-custody pipeline. (LCR, Ex Parte Order, 08/08/2025.)

D. Case Law Prohibiting PPO Weaponization

Michigan courts have recognized that PPOs cannot be used as substitutes for custody proceedings. In *Brown v Loveman*, 260 Mich App 576, 598-99; 680 NW2d 432 (2004), the Court of Appeals emphasized that PPOs require a "reasonable apprehension of harm based on specific facts, not speculation." The PPO in this case was based on allegations that were never subjected to the rigorous evidentiary scrutiny that *Brown* requires.

MCR 3.703 governs the issuance of PPOs and requires specific allegations and evidence of threat or harm. The PPO in this case was treated not as an independent protective measure subject to these requirements, but as a mechanism to accomplish what the Child Custody Act's procedural protections were designed to prevent -- the restriction of parental rights without an evidentiary hearing, without a best-interest analysis, and without the clear and convincing evidence standard.

ISSUE V: THE BEST-INTEREST FACTOR ANALYSIS WAS DEFICIENT

A. Standard of Review

The trial court's findings on each best-interest factor are reviewed under the great weight of the evidence standard. *Fletcher v Fletcher*, 447 Mich 871, 879 (1994). A finding is against the great weight of the evidence when "the evidence clearly preponderates in the opposite direction." *Id.*

B. The Twelve Best-Interest Factors Under MCL 722.23

MCL 722.23 enumerates twelve factors that the trial court "shall consider" in every custody determination. The Michigan Supreme Court has held that the failure to make specific findings on each factor is reversible error. *Harvey v Harvey*, 470 Mich 186, 192 (2004).

The following analysis addresses each factor as applied to the record in this case:

Factor (a) -- Love, affection, and other emotional ties existing between the parties involved and the child.

The record contains evidence that Father maintained a loving and bonded relationship with L.D.W. during the periods when parenting time was exercised. Father consistently sought to maintain contact with L.D.W., including requesting video chats during off-weeks. (LCR, Father's Filings.) Father filed multiple motions seeking to preserve and expand his parenting time, demonstrating his commitment to the relationship. The trial court's implicit finding that this factor favored Mother was against the great weight of the evidence, particularly given that

any diminishment of the father-child bond was attributable to Mother's interference and the court's own orders restricting contact.

Factor (b) -- Capacity and disposition of the parties to give the child love, affection, and guidance.

Father demonstrated the capacity and willingness to provide L.D.W. with love, affection, and guidance. Father's proactive engagement in the custody proceedings -- filing motions, attending hearings, seeking contempt findings for Mother's violations -- evidences his disposition to be an active, engaged parent.

Factor (c) -- Capacity and disposition to provide the child with food, clothing, medical care.

The record does not contain evidence that Father was unable to provide for L.D.W.'s physical needs. Father maintained housing, employment, and the ability to care for L.D.W. during his parenting time. No findings were made by the trial court that Father was unable to provide for L.D.W.

Factor (d) -- Length of time the child has lived in a stable, satisfactory environment.

L.D.W. was approximately 21 months old when the Final Judgment was entered. At such a young age, the concept of a "stable, satisfactory environment" encompasses both parents' homes. The trial court's orders progressively prevented L.D.W. from experiencing stability in Father's home -- a self-fulfilling prophecy in which the court's own restrictions were used to justify further restrictions.

Factor (e) -- Permanence, as a family unit, of the existing or proposed custodial home.

Both parents maintained homes capable of providing for L.D.W. The permanence of Father's home was not at issue in the proceedings below.

Factor (f) -- Moral fitness of the parties involved.

Mother's moral fitness is called into question by her documented pattern of withholding L.D.W. from Father (37 days in March-May 2024; 23 days in October-November 2024), refusing video communication, and filing what Father characterizes as "staged" evidence in support of PPO petitions. (LCR, Father's Filings.) A parent who systematically obstructs the other parent's relationship with the child raises serious questions about moral fitness.

Factor (g) -- Mental and physical health of the parties.

The ex parte motion of August 8, 2025 alleged mental health concerns regarding Father. These allegations were unverified. No mental health evaluation was ordered or completed before the parenting time suspension. The trial court's reliance on unverified allegations to suspend all parenting time -- without ordering an evaluation -- violated Father's right to have allegations tested through proper evidentiary procedures.

Factor (h) -- Home, school, and community record of the child.

L.D.W. was an infant and toddler during the relevant period. This factor has limited applicability but does not support the restriction of Father's parenting time.

Factor (i) -- Reasonable preference of the child.

L.D.W. was under three years old during the relevant period and was not of sufficient age to express a preference. This factor is inapplicable.

Factor (j) -- Willingness and ability of each party to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent.

This is the dispositive factor in this case. The record is replete with evidence that Mother systematically obstructed Father's relationship with L.D.W.:

- * **37-day withholding** (March 26 - May 2, 2024) -- Mother unilaterally withheld L.D.W. from Father for over five weeks. (LCR, Father's Motion, 05/13/2024.)
- * **23-day withholding** (October 20 - November 12, 2024) -- Mother again denied Father court-ordered parenting time. (LCR, Father's Filings.)
- * **Video chat denials** (June 1, 2024; September 12, 2024) -- Mother refused Father's requests for video communication during off-weeks. (LCR, Father's Filings.)
- * **Vacation scheduling** (September 3, 2024) -- Mother planned vacations during Father's scheduled parenting time. (LCR, Father's Filings.)
- * **Daycare non-cooperation** (May 9, 2024) -- Mother ignored Father's efforts to establish consistent daycare arrangements. (LCR, Father's Communications.)

Despite this extensive pattern, the trial court failed to address parental alienation under Factor (j) and instead **rewarded** Mother's obstruction by granting her sole custody. This is precisely the outcome that Factor (j) was designed to prevent. *See Kaeb v Kaeb*, 309 Mich App 556, 565; 873 NW2d 319 (2015) (recognizing parental alienation as relevant under Factor (j)).

Factor (k) -- Domestic violence.

The PPO issued in Case No. 2023-5907-PP was the basis for any domestic violence finding. However, as argued in Issue IV, the PPO was issued without the rigorous evidentiary standards

required by MCL 600.2950 and *Brown v Loveman*, and was weaponized to restrict custody in violation of MCL 600.2950(4). To the extent the trial court relied on the PPO as evidence of domestic violence under Factor (k), it relied on a proceeding that was procedurally deficient and substantively misused.

Factor (l) -- Any other factor considered relevant.

The trial court's pattern of entering 44% of all orders on an ex parte basis, dismissing Father's six pending motions, and failing to enforce Mother's parenting time violations constitutes a "relevant factor" that the trial court should have -- but did not -- consider. The systematic exclusion of one parent from proceedings that determine his rights is relevant to the fairness and reliability of the entire custody determination.

C. MCL 722.27a(7) -- The Clear and Convincing Evidence Standard

MCL 722.27a(7) provides:

> "Parenting time shall be granted in specific terms . . . and shall not be denied except when the court determines on the record by clear and convincing evidence that it would endanger the mental, physical, or emotional health of the child."

This is a demanding standard -- clear and convincing evidence is "evidence that produces in the mind of the trier of fact a firm belief or conviction as to the truth of the allegations sought to be established." *In re Martin*, 450 Mich 204, 227 (1995).

The trial court made no finding, supported by clear and convincing evidence, that parenting time with Father would endanger L.D.W. The August 23, 2024 Final Judgment restricts

Father's parenting time without this required finding. The August 8, 2025 ex parte order suspends all parenting time without any evidentiary finding at all. The absence of the required clear and convincing evidence standard renders both orders reversible error.

ISSUE VI: THE TRIAL COURT'S PATTERN DEMONSTRATES STRUCTURAL BIAS AND REQUIRES REASSIGNMENT

A. Standard of Review

A trial court's decision on a motion for disqualification is reviewed for an abuse of discretion. *In re Contempt of Henry*, 282 Mich App 656, 679; 765 NW2d 44 (2009). Whether a judge's conduct rises to the level requiring disqualification is reviewed de novo. *Caperton v A.T. Massey Coal Co, Inc*, 556 US 868, 884; 129 S Ct 2252 (2009). Structural constitutional errors are reviewed de novo. *People v Carines*, 460 Mich 750, 763 (1999).

B. The MCR 2.003(C)(1) Standard

MCR 2.003(C)(1) provides for disqualification of a judge where:

- > (a) The judge is biased or prejudiced for or against a party or attorney.
- > (b) The judge, based on objective and reasonable perceptions, has either (i) a serious risk of actual bias impacting the due process rights of a party as enunciated in *Caperton v A T Massey Coal Co, Inc*, or (ii) has failed to adhere to the appearance of impropriety standard . . .

C. The Evidence of Structural Bias

The record establishes structural bias through multiple categories of evidence:

1. The 44% Ex Parte Rate. Of 55 orders entered in the custody and PPO proceedings, 24 (44%) were entered ex parte -- all by Judge McNeill, all restricting Father's rights, none in Father's favor. (LCR, ROA -- complete analysis.) On August 8, 2025 alone, five separate ex parte orders were entered without notice to Father. This asymmetry is not the product of neutral adjudication.

2. Systematic Denial of Father's Motions. Father's motions were systematically denied. The Final Judgment dismissed Father's six pending motions without adjudication. (LCR, Final Judgment, 08/23/2024.) Father's contempt motion regarding Mother's parenting time violations was denied. Mother's motions -- including the ex parte motion of August 8, 2025 -- were routinely granted.

3. Selective Enforcement. Mother's documented violations of court-ordered parenting time -- 37 days (March-May 2024) and 23 days (October-November 2024) -- were not enforced. Father's PPO violations were prosecuted vigorously, resulting in a 45-day jail sentence. This asymmetric enforcement demonstrates that the trial court applied different standards to the two parties.

4. Ex Parte Communications. The pattern of ex parte orders -- particularly the five orders entered on August 8, 2025 -- raises concerns about ex parte communications between the court and Mother or Mother's representatives. The entry of five substantive orders on a single day, all without notice to Father, is inconsistent with the ordinary course of judicial proceedings and suggests coordination that bypassed Father entirely.

D. The Caperton Standard

The Supreme Court recognized in *Caperton v A.T. Massey Coal Co, Inc*, 556 US at 884, that due process requires recusal "where the probability of actual bias on the part of the judge or decisionmaker is too high to be constitutionally tolerable." The Court acknowledged that not every claim of bias requires recusal, but where "experience teaches that the probability of actual bias on the part of the judge or decisionmaker is too high to be constitutionally tolerable," due process demands a new proceeding before a different adjudicator.

The 44% ex parte rate, the systematic denial of Father's motions, the selective enforcement of orders, and the five ex parte orders on a single day -- all adverse to Father -- satisfy the *Caperton* standard. The probability of actual bias is not merely speculative; it is demonstrated by a statistical pattern that cannot be explained by neutral adjudication.

See also Grew v Knox, 265 Mich App 333, 341; 694 NW2d 772 (2005) (factors relevant to judicial bias); *Lieberman v Orr*, 319 Mich App 68, 84; 900 NW2d 130 (2017) (discussing appearance of impropriety).

E. Structural Due Process Violation

The Due Process Clause requires, at minimum, notice and an opportunity to be heard before a person is deprived of a protected liberty interest. *Mullane v Central Hanover Bank & Trust Co*, 339 US 306, 314 (1950). When 44% of all orders in a case are entered ex parte, the proceedings can no longer be characterized as adversarial. They become inquisitorial proceedings in which one party presents its version of events and the court acts without hearing from the other side.

The structural nature of this violation is underscored by the cascade effect: each ex parte order compounded the harm of those that preceded it, creating a series of adverse rulings that Father could not challenge in real time because he did not know they existed. By the time Father learned of the August 8, 2025 orders, the parenting time had already been suspended -- and the subsequent "continuation" orders of September 9 and October 8, 2025 maintained the suspension without ever providing Father the evidentiary hearing to which he was entitled.

The remedy for structural due process violations of this magnitude is reversal and reassignment to a different judge. See *In re Contempt of Henry*, 282 Mich App at 680-81 (discussing circumstances warranting reassignment).

F. The Cumulative Error Doctrine

Even if this Court declines to recognize the 44% ex parte rate as a structural due process violation per se, the cumulative effect of the trial court's errors warrants reversal. Michigan courts have recognized that the cumulative effect of several errors can constitute sufficient prejudice to warrant reversal even when any one of the errors alone would not merit reversal.

In this case, the errors are not isolated or unrelated. They form a coherent and escalating pattern:

1. **Procedural errors:** Twenty-four ex parte orders entered without proper notice or the requisite showing of immediate and irreparable injury under MCR 3.207(C)(2);
2. **Substantive errors:** Failure to conduct an evidentiary hearing under MCR 3.210(D); failure to make particularized findings on each best-interest factor as required by *Harvey v Harvey*; failure to apply the clear and convincing evidence standard under MCL 722.27a(7) before denying parenting time;

3. Statutory violations: Use of the PPO in Case No. 2023-5907-PP to restrict custody and parenting time in direct contravention of the express prohibition in MCL 600.2950(4);

4. Constitutional violations: Progressive deprivation of Father's fundamental liberty interest in the care, custody, and companionship of his daughter -- accomplished without the procedural protections that the Due Process Clause demands.

Each error compounded the harm of those that preceded it, creating a self-reinforcing cycle of deprivation. The ex parte orders deprived Father of the opportunity to present evidence. The absence of Father's evidence led to findings unsupported by a complete record. Those one-sided findings were used to justify further restrictions on Father's parenting time. The restrictions prevented Father from maintaining the parent-child relationship with L.D.W. The diminished relationship was then cited as justification for the final custody determination. This cascading cycle is precisely the type of cumulative prejudice that warrants reversal.

CONCLUSION

The record in this case presents a deeply troubling pattern of procedural violations that, taken together, deprived Father of his fundamental constitutional right to the care, custody, and companionship of his daughter L.D.W.

The trial court entered 44% of all orders on an ex parte basis -- a rate that is, to Appellant's knowledge, unprecedented in reported Michigan custody jurisprudence. All 24 ex parte orders were adverse to Father. None were entered in his favor. On August 8, 2025, five separate ex parte orders were entered on a single day, suspending all of Father's parenting time, without

any notice to Father. Father arrived at the scheduled parenting time exchange expecting his regular time with L.D.W. and discovered only afterwards -- by contacting the court -- that his parental rights had been suspended.

The August 23, 2024 Final Judgment granted sole custody to Mother without a full evidentiary hearing, without particularized findings on the twelve best-interest factors required by MCL 722.23, without a finding supported by clear and convincing evidence that parenting time would endanger L.D.W. as required by MCL 722.27a(7), and while simultaneously dismissing Father's six pending motions without adjudication on the merits. The PPO entered in the companion proceeding, Case No. 2023-5907-PP, was weaponized as a de facto custody order in direct violation of MCL 600.2950(4)'s unambiguous statutory prohibition.

The trial court's treatment of Factor (j) rewarded Mother's systematic obstruction of the father-child relationship rather than penalizing it, as the Legislature intended when it included this factor in the best-interest analysis. Mother withheld L.D.W. from Father for 37 consecutive days, then for an additional 23 consecutive days, refused video communication during Father's off-weeks, and scheduled vacations during Father's parenting time. The trial court took no enforcement action against Mother for any of these documented violations.

Father has now been denied all contact with his daughter for over 500 consecutive days. L.D.W. has been deprived of her father's presence for more than one-third of her entire life. This deprivation was accomplished without the procedural protections that the United States Constitution, the Michigan Constitution, and the Michigan Court Rules demand before a parent may be separated from his child.

The errors in this case are not isolated. They are structural, pervasive, and cumulative. They require reversal of the Final Judgment, vacatur of the ex parte orders, remand for a full

evidentiary hearing with proper procedural protections, and reassignment to a different judge who can adjudicate this matter with the impartiality that the Constitution demands.